

IN THE [COURT HAVING JURISDICTION IN THIS MATTER – CRIMINAL, CIRCUIT OR GENERAL SESSIONS COURT; CONFIRM FROM YOUR OWN RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF TENNESSEE

STATE OF TENNESSEE,
Plaintiff,

v.

JOHN DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNCTION OF A NON-CONVICTION RECORD, PURSUANT TO T.C.A. § 40-32-106(a)

STATUTORY AUTHORITY

T.C.A. § 40-32-106(a)(1) – All public records of a person charged with a misdemeanor or felony must, upon petition by that person to the court having jurisdiction in the previous action, be removed and destroyed without cost to the person where the charge was dismissed other than by diversion completion, a no true bill was returned, the person was arrested and released without being charged, a nolle prosequi was entered, a verdict of not guilty was returned, or on the section's further enumerated grounds. There is no waiting period.

T.C.A. § 40-32-106(a)(2) – Extends the same no-cost treatment to a successfully defended order of protection and to expired bonds.

T.C.A. § 40-32-102(d) – The court forwards the order to the Tennessee Bureau of Investigation within 30 days of entry; nothing changes on a background check until it arrives.

T.C.A. § 40-32-102(e) – Expunged records are confidential and unlawful release is a Class A misdemeanor.

T.C.A. § 40-32-110 – Expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court having jurisdiction in the previous action in Sample County (synthetic sample venue), State of Tennessee, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Tennessee.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 1000 Sample Street, Nashville, TN 37203.

4. Plaintiff is the State of Tennessee.

III. FACTS AND CASE HISTORY

5. On or about 11/08/2023, Petitioner was charged with Misdemeanour charge stated in the participant's own court record (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 04/12/2024, the matter was resolved with the following disposition: Nolle prosequi entered; no conviction on any count (synthetic sample disposition).
8. The offense grade was: Misdemeanour (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expunction on the following basis: expunction under T.C.A. § 40-32-106(a)(1) (Petitioner states a nolle prosequi was entered and no count resulted in a conviction).
10. Petitioner states the charge was resolved by nolle prosequi and that the dismissal did not result from completion of a diversion programme (synthetic sample answer).
11. Petitioner states no count in this case resulted in a conviction (synthetic sample answer).
12. Petitioner states this case originated in the court named in the caption and that any case in another county is the subject of a separate petition (synthetic sample answer).
13. State control number: [STATE CONTROL NUMBER – READ FROM YOUR OWN CRIMINAL HISTORY AND ENTER IT HERE BEFORE FILING].
14. Petitioner states this route is provided without cost under the governing section.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expunction of all public records of the charge or charges that did not result in a conviction in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to remove and destroy all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- [ANY DOCUMENT THE PARTICIPANT CHOOSES TO FILE IN SUPPORT – PARTICIPANT ENCLOSES COPIES ONLY]

Prepared by petitioner using LegalEase RCAP. This is not an official court form.